& Reading R. Co. v. *McKibbin,* 243 U. S. 264, 268; *People's Tobacco Co.* v. *American Tobacco Co., supra,* 87. And appellant further argues that since it was not present within the state, it is a denial of due process to subject it to taxation or other money exaction. It thus denies the power of the state to lay the tax or to subject appellant to a suit for its collection.

Historically the jurisdiction of courts to render judgment *in personam* is grounded on their de facto power over the defendant's person. Hence his presence within the territorial jurisdiction of a court was prerequisite to its rendition of a judgment personally binding him. *Pennoyer* v. *Neff,* 95 U. S. 714, 733. But now that the *capias ad respondendum* has given way to personal service of summons or other form of notice, due process requires only that in order to subject a defendant to a judgment *in personam,* if he be not present within the territory of the forum, he have certain minimum contacts with it such that the maintenance of the suit does not offend "traditional notions of fair play and substantial justice." *Milliken* v. *Meyer,* 311 U. S. 457, 463. See Holmes, J., in *McDonald* v. *Mabee,* 243 U. S. 90, 91. Compare *Hoopeston Canning Co.* v. *Cullen,* 318 U. S. 313, 316, 319. See *Blackmer* v. *United States,* 284 U. S. 421; *Hess* v. *Pawloski,* 274 U. S. 352; *Young* v. *Masci,* 289 U. S. 253.

Since the corporate personality is a fiction, although a fiction intended to be acted upon as though it were a fact, *Klein* v. *Board of Supervisors,* 282 U. S. 19, 24, it is clear that unlike an individual its "presence" without, as well as within, the state of its origin can be manifested only by activities carried on in its behalf by those who are authorized to act for it. To say that the corporation is so far "present" there as to satisfy due process requirements, for purposes of taxation or the maintenance of suits against it in the courts of the state, is to beg the question to be decided. For the terms "present" or "presence" are